

****November 13, 2024****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed an investigation in October 2024 regarding the operator UP ROMÂNIA SRL and found violations of the provisions of Article 5 paragraph (1) letters a), c) and paragraph (2) and Article 6 of Regulation (EU) 2016/679, in conjunction with Article 5 letters a)-d) of Law no. 190/2018, as well as violations of the provisions of Article 5 paragraph (1) letter e) and paragraph (2) of Regulation (EU) 2016/679, in conjunction with Article 5 of Law no. 190/2018.

As such, the operator was sanctioned:

- with a fine of 19,898.4 Ron (equivalent to the amount of 4,000 Euros) for violating the provisions of Article 5 paragraph (1) letters a), c) and paragraph (2) and Article 6 of Regulation (EU) 2016/679, in conjunction with Article 5 letters a)-d) of Law no. 190/2018;
- with a warning for violating the provisions of Article 5 paragraph (1) letter e) and paragraph (2) of Regulation (EU) 2016/679, in conjunction with Article 5 of Law no. 190/2018.

The investigation was initiated following a complaint from an individual regarding a possible violation of Regulation (EU) 2016/679.

During the investigation, it was found that the operator processed the personal data of its employee, data collected through the GPS monitoring system installed in the company car, while the employee was off duty, including during vacation periods.

Thus, the processing of data related to the identification and location of the employee during their free time was carried out without legal grounds and in violation of the principles of personal data processing, concerning legality and transparency as well as data minimization.

At the same time, it was found that this situation affected several employees of the operator in a similar situation.

As such, this situation represents a violation of the provisions of Article 5 paragraph (1) letters a), c) and paragraph (2) and Article 6 of Regulation (EU) 2016/679, in conjunction with Article 5 letters a)-d) of Law no. 190/2018.

Additionally, during the investigation, it was found that the operator unjustifiably stored, for periods exceeding the legal term of 30 days, the data of employees through the GPS monitoring system installed in the company cars, violating the provisions of Article 5 paragraph (1) letter e) and paragraph (2) in conjunction with Article 5 of Law no. 190/2018.

Furthermore, under the provisions of Article 58 paragraph (2) letter b) of Regulation (EU) 2016/679, the following corrective measures were imposed on the operator:

- to ensure compliance with Regulation (EU) 2016/679 regarding the operations of collecting and further processing personal data, by reevaluating the necessity of achieving the purposes proposed through the use of data obtained from the GPS monitoring system installed in the company cars of the operator's employees, in relation to the obligations provided by Regulation (EU) 2016/679 and Law no. 190/2018.
- to ensure compliance with Regulation (EU) 2016/679 regarding the operations of collecting and further processing personal data, by limiting the storage period of data in relation to the purposes of data processing and removing excessively stored/processed data from the records.

****Legal and Communication Department****

****N.A.S.P.D.C.P****